



Terms of Service

Enterprise Interview Security Platform

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*This document constitutes a legally binding agreement.
Please read carefully before using Blockd services.*

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Introduction

Welcome to Blockd (“Company,” “we,” “our,” or “us”). Blockd is an enterprise interview security platform that helps organizations ensure interview integrity through advanced monitoring, AI-powered analysis, and security verification. These Terms of Service (“Terms”) constitute a legally binding agreement between you and Blockd, Inc., a Delaware corporation.

By accessing or using our services, including our web platform, Blockd Browser application, APIs, or any related services (collectively, the “Services”), you agree to be bound by these Terms. **If you do not agree to these Terms, do not use our Services.**

1. Definitions

“Blockd Browser” means the custom Chromium-based browser application provided by Blockd that includes integrated security monitoring, eye tracking, and interview integrity features.

“Interviewer” means any user who creates, manages, or conducts interview sessions through the Blockd platform, including hiring managers, recruiters, or their designated representatives.

“Interviewee” or **“Candidate”** means any individual who participates in an interview session as the person being evaluated, using the Blockd Browser or web platform.

“Organization” means the business entity that subscribes to Blockd Services for the purpose of conducting interviews.

“Session” means an individual interview conducted through the Blockd platform, including all associated data, recordings, and analysis.

“Session Data” means all information collected during an interview session, including but not limited to video recordings, audio transcriptions, eye tracking data, behavioral analytics, security events, and AI-generated analysis.

“Personal Data” means any information relating to an identified or identifiable natural person.

“Security Event” means any detected activity that may indicate a compromise of interview integrity, including but not limited to unauthorized software, screen recording, virtual machines, browser manipulation, or suspicious behavior.

2. Eligibility and Account Registration

2.1 Eligibility

To use Blockd Services, you must:

- (a) Be at least 18 years of age or the age of majority in your jurisdiction;

- (b) Have the legal authority to enter into this agreement;
- (c) If representing an Organization, have the authority to bind that Organization to these Terms;
- (d) Not be prohibited from receiving our Services under applicable laws.

2.2 Account Registration

For Interviewers and Organizations:

When creating an account, you agree to:

- (a) Provide accurate, current, and complete information;
- (b) Maintain and promptly update your account information;
- (c) Maintain the security and confidentiality of your login credentials;
- (d) Accept responsibility for all activities under your account;
- (e) Immediately notify us of any unauthorized use of your account.

For Interviewees:

Interviewees may access the platform through:

- (a) Email invitations containing session-specific access links;
- (b) Creating a registered account at the invitation of an Organization;
- (c) Using the Blockd Browser with a valid session token.

2.3 Multi-Factor Authentication

We may require or recommend multi-factor authentication (MFA) for enhanced security. When enabled:

- (a) You are responsible for maintaining access to your authentication device;
- (b) Backup codes must be stored securely;
- (c) Loss of MFA access may require identity verification for account recovery.

3. Description of Services

3.1 Platform Overview

Blockd provides an interview integrity platform that enables Organizations to:

- (a) Schedule and conduct remote video interviews;

- (b) Monitor interview sessions for potential integrity violations;
- (c) Analyze candidate responses for indicators of AI-generated or pre-prepared answers;
- (d) Generate comprehensive security and analysis reports;
- (e) Maintain audit trails for compliance and review purposes.

3.2 Blockd Browser

The Blockd Browser is a specialized application that includes:

- (a) **Security Monitoring:** Detection of screen recording software, virtual machines, unauthorized processes, and other potential integrity threats;
- (b) **Eye Tracking:** Continuous gaze analysis to detect reading patterns or off-screen focus;
- (c) **System Telemetry:** Collection of system performance metrics and application activity;
- (d) **Meeting Integration:** Detection and monitoring of video conferencing platforms (Google Meet, Zoom, Microsoft Teams);
- (e) **Video Capture:** Recording capabilities for session documentation.

3.3 AI Analysis Services

Our AI-powered analysis includes:

- (a) Comparison of candidate responses against AI-generated baselines;
- (b) Response timing and pattern analysis;
- (c) Language pattern evaluation;
- (d) Risk scoring and classification;
- (e) Behavioral anomaly detection.

3.4 Service Availability

We strive to maintain 99.9% uptime for our Services but do not guarantee uninterrupted access. Scheduled maintenance will be communicated in advance when possible.

4. User Roles and Responsibilities

4.1 Organization Responsibilities

Organizations using Blockd Services agree to:

- (a) **Candidate Notification:** Inform all Interviewees, prior to their interview, that Blockd monitoring technology will be used, including the specific types of monitoring employed;
- (b) **Consent Acquisition:** Obtain appropriate consent from Interviewees before requiring use of the Blockd Browser or monitoring features;
- (c) **Lawful Use:** Use Blockd Services only in compliance with all applicable laws, including employment laws, privacy laws, and anti-discrimination regulations;
- (d) **Data Accuracy:** Ensure that Session Data is used fairly and that hiring decisions are made holistically, not solely based on Blockd analysis;
- (e) **Access Management:** Properly manage user access and promptly remove access for terminated employees;
- (f) **Compliance Training:** Ensure authorized users understand their obligations under these Terms.

4.2 Interviewer Responsibilities

Interviewers agree to:

- (a) Use their accounts only for legitimate interview purposes;
- (b) Not share login credentials with unauthorized individuals;
- (c) Review and understand the monitoring capabilities before conducting interviews;
- (d) Not use Blockd to discriminate against protected classes;
- (e) Maintain the confidentiality of Session Data and candidate information;
- (f) Report any suspected security incidents or data breaches.

4.3 Interviewee Responsibilities

By participating in a Blockd-monitored interview, Interviewees acknowledge and agree:

- (a) **Awareness of Monitoring:** You understand that comprehensive monitoring will occur during the interview, as detailed in Section 6;
- (b) **Authentic Participation:** You will participate authentically, using your own knowledge and abilities;
- (c) **No Circumvention:** You will not attempt to circumvent, disable, or manipulate monitoring features;
- (d) **System Requirements:** You will ensure your system meets minimum requirements for the Blockd Browser;

- (e) **Environment Preparation:** You will conduct the interview in an appropriate environment as specified by the Organization;
- (f) **Accurate Information:** Any information you provide will be accurate and truthful.

4.4 Prohibited User Conduct

All users agree not to:

- (a) Use the Services for any unlawful purpose;
- (b) Attempt to gain unauthorized access to any part of the Services;
- (c) Interfere with or disrupt the Services or servers;
- (d) Reverse engineer, decompile, or disassemble any aspect of the Services;
- (e) Use automated systems to access the Services without authorization;
- (f) Transmit viruses, malware, or other malicious code;
- (g) Impersonate another person or entity;
- (h) Use the Services to harass, abuse, or harm others.

5. Data Collection and Privacy

5.1 Overview

Blockd collects, processes, and stores various types of data to provide our Services. This section describes what data we collect and why. Our full Privacy Policy, available at privacy.blockd.site, provides additional detail.

5.2 Personal Identification Data

We collect the following personal information:

From All Users:

- Email address
- First and last name
- Password (stored as cryptographic hash, never in plaintext)
- Organization affiliation (if applicable)
- Account creation and login timestamps
- IP addresses used to access the Services

- Browser and device information (User Agent)

From OAuth Users:

- OAuth provider identifier (Google, Microsoft)
- Access and refresh tokens
- Profile information provided by the OAuth provider

For Multi-Factor Authentication:

- MFA secret keys
- Backup codes
- Authentication attempt history

5.3 Interview Session Data

During interview sessions, we collect:

Scheduling and Metadata:

- Scheduled and actual start/end times
- Session duration
- Meeting platform link (Google Meet, Zoom, Microsoft Teams)
- Interviewer and Interviewee identifiers
- Session status and state transitions

Interview Content:

- Full text of interview questions
- Complete candidate responses (text and transcriptions)
- Audio recordings of verbal responses
- Video recordings of the interview session
- Chat messages exchanged during the session

5.4 Behavioral and Biometric Data

Eye Tracking Data (Collected at approximately 30 frames per second):

- Gaze coordinates (X, Y positions on screen)
- Gaze direction vectors

- Off-screen detection (when candidate looks away)
- Pupil diameter measurements (left and right eye)
- Head position and orientation (pitch, yaw, roll)
- Confidence scores for eye detection accuracy

Response Analysis:

- Response timing (time to begin answering, total response time)
- Word count and speaking pace
- Pause frequency and duration
- Filler word usage patterns
- Sentence structure metrics

5.5 System and Security Data**Browser Telemetry (Collected continuously during sessions):**

- CPU and memory usage
- Number of active processes
- Currently focused window title
- Number of open browser tabs
- Network requests made by the browser
- Timestamp for each data point

Security Monitoring:

- Running processes (name, path, signatures)
- Screen recording software detection
- Virtual machine detection
- Clipboard activity
- Keyboard shortcut attempts
- Window focus changes
- Connected display information

5.6 AI Analysis Data

Generated Analysis:

- Risk scores (overall and by category)
- AI-generated comparison responses for each question
- Similarity scores between candidate answers and AI baselines
- Language perplexity measurements
- Behavioral anomaly flags
- Recommendations for further review

AI Answer Cache:

- Question text and hash
- Model-generated responses
- Vector embeddings for similarity search
- Analysis metadata

5.7 Audit and Compliance Data

- Complete audit logs of all user actions
- Resource access history
- Login attempt records (successful and failed)
- Data export requests
- Account modification history

5.8 Purposes of Data Processing

We process data for the following purposes:

- (a) **Service Delivery:** Providing the interview platform and monitoring features;
- (b) **Interview Integrity:** Detecting potential cheating, fraud, or misrepresentation;
- (c) **Analysis and Reporting:** Generating insights and reports for Organizations;
- (d) **Security:** Protecting against unauthorized access and abuse;
- (e) **Legal Compliance:** Meeting legal and regulatory obligations;
- (f) **Service Improvement:** Enhancing our algorithms and user experience;

- (g) **Communication:** Sending service-related notifications and support.

5.9 Legal Basis for Processing

Depending on your jurisdiction and the type of data, we process data based on:

- (a) **Contract Performance:** Processing necessary to provide Services;
- (b) **Legitimate Interests:** Processing for business purposes where not overridden by your rights;
- (c) **Consent:** Processing based on your explicit consent;
- (d) **Legal Obligation:** Processing required by law.

6. Monitoring and Security Features

6.1 Comprehensive Monitoring Disclosure

IMPORTANT: By using Blockd Services, particularly as an Interviewee, you acknowledge that the following monitoring occurs.

6.2 Video and Audio Monitoring

During interview sessions, we capture:

- Continuous video recording via webcam (default 640×480 resolution at 30fps)
- Audio recording of all verbal communication
- Screen content if visible in the camera view
- Meeting platform interface and interactions

6.3 Eye and Gaze Tracking

Using computer vision technology, we monitor:

- Where you are looking on the screen (gaze position)
- When you look away from the screen (off-screen detection)
- Reading patterns that may indicate use of notes or other materials
- Attention and focus metrics
- Pupil measurements for engagement analysis

- Head position and movement

6.4 System-Level Monitoring

The Blockd Browser monitors your computer system for:

Process Monitoring:

- All running applications and processes
- Process creation and termination events
- Application signatures and paths
- Potentially suspicious or forbidden applications

Security Detection:

- Screen recording or screen capture software
- Virtual machine environments (VMware, VirtualBox, Hyper-V)
- Remote desktop software
- Browser automation tools
- Debugging or developer tools

Activity Monitoring:

- Window focus changes (switching between applications)
- Clipboard operations (copy/paste activity)
- Keyboard shortcuts (attempts to use blocked combinations)
- Connected displays and monitors
- Network connections and requests

6.5 Meeting Platform Detection

When you use video conferencing platforms, we detect:

- Which platform you are using (Google Meet, Zoom, Microsoft Teams)
- Meeting URLs and identifiers
- Meeting state (waiting room, in-call, etc.)
- Platform-specific interactions

6.6 Security Event Classification

Detected events are classified by severity:

Severity	Description	Examples
Critical	Immediate integrity threat	VM detected, screen recording active
High	Significant concern	Suspicious process, unauthorized browser
Medium	Moderate concern	Multiple monitors, frequent window switches
Low	Minor observation	Occasional off-screen glance, clipboard use

6.7 Limitations of Monitoring

Monitoring technology is not perfect. You acknowledge that:

- (a) False positives may occur (legitimate activity flagged incorrectly);
- (b) False negatives may occur (violations may go undetected);
- (c) Environmental factors may affect accuracy;
- (d) Monitoring results should be considered alongside other factors;
- (e) Final hiring decisions remain with the Organization.

7. Consent and Disclosure Requirements

7.1 Interviewee Consent

By downloading, installing, or using the Blockd Browser, or by participating in a Blockd-monitored interview session, you:

- (a) **Acknowledge** that you have read and understood the monitoring disclosures in Section 6;
- (b) **Consent** to the collection, processing, and storage of the data described in Section 5;
- (c) **Consent** to the use of eye tracking and behavioral analysis technology;
- (d) **Consent** to video and audio recording of the interview session;
- (e) **Consent** to system-level monitoring of your computer during the session;
- (f) **Understand** that Session Data will be shared with the Organization conducting the interview.

7.2 Withdrawal of Consent

You may withdraw consent by:

- (a) Declining to participate in the interview;
- (b) Closing the Blockd Browser and not proceeding with the session;
- (c) Requesting deletion of your data as described in Section 13.

Note: Withdrawal of consent may result in inability to complete the interview and may be communicated to the Organization.

7.3 Organization Consent Obligations

Organizations agree to:

- (a) Provide Interviewees with clear, advance notice of Blockd monitoring before the interview;
- (b) Obtain appropriate consent from Interviewees based on applicable law;
- (c) Provide Interviewees with access to relevant portions of these Terms;
- (d) Not use coercive tactics to obtain consent;
- (e) Document consent as required by law.

7.4 Jurisdictional Considerations

Some jurisdictions require specific forms of consent for:

- Video/audio recording
- Biometric data collection (including eye tracking)
- Workplace monitoring
- International data transfers

Organizations are responsible for understanding and complying with consent requirements in their jurisdiction and the jurisdictions where Interviewees are located.

8. Intellectual Property Rights

8.1 Blockd Ownership

Blockd and its licensors retain all rights, title, and interest in:

- (a) The Blockd platform, including all software, algorithms, and interfaces;

- (b) The Blockd Browser and all embedded technologies;
- (c) AI models and analysis methodologies;
- (d) Trademarks, logos, and brand assets;
- (e) Documentation and training materials;
- (f) Aggregate and anonymized analytics derived from usage.

8.2 License Grant to Users

Subject to these Terms, Blockd grants you a limited, non-exclusive, non-transferable, revocable license to:

- (a) Access and use the Blockd platform for its intended purpose;
- (b) Download and use the Blockd Browser for interview participation;
- (c) View and download reports for legitimate business purposes.

8.3 User Content

Organization Content:

Organizations retain ownership of:

- Interview questions they create or upload
- Custom configuration and settings
- Organizational policies and templates

Interviewee Content:

Interviewees retain ownership of:

- Their interview responses and original ideas
- Personal biographical information

By using the Services, you grant Blockd a license to:

- Process, analyze, and store your content for service delivery
- Use anonymized data for algorithm improvement
- Generate derivative analysis and reports

8.4 Restrictions

You may not:

- (a) Copy, modify, or create derivative works of the Services;
- (b) Reverse engineer, decompile, or disassemble the Services;
- (c) Remove or alter proprietary notices;
- (d) Use our intellectual property without authorization;
- (e) License, sell, or transfer your rights to use the Services.

9. Subscription and Payment Terms

9.1 Subscription Tiers

Blockd offers the following subscription tiers:

Tier	Features	Pricing
Free	Limited features, basic monitoring	No charge
Professional	Full features, standard support	Monthly/Annual fee
Enterprise	Custom features, priority support	Custom pricing

9.2 Payment Terms

For paid subscriptions:

- (a) Payment is due in advance for the subscription period;
- (b) Subscriptions auto-renew unless cancelled before renewal;
- (c) Prices are subject to change with 30 days' notice;
- (d) All fees are non-refundable except as required by law;
- (e) Overdue payments may result in service suspension.

9.3 Usage Limits

Each tier includes specific limits:

- Maximum concurrent sessions
- Monthly session allowance
- Data storage quotas
- API rate limits

Exceeding limits may result in additional charges or service restrictions.

9.4 Taxes

Prices exclude applicable taxes. You are responsible for all taxes, and we may charge taxes where required.

10. Prohibited Uses

10.1 General Prohibitions

You may not use Blockd Services to:

- (a) Conduct surveillance without appropriate consent;
- (b) Discriminate against individuals based on protected characteristics;
- (c) Violate employment, privacy, or other applicable laws;
- (d) Harass, intimidate, or harm individuals;
- (e) Conduct interviews for fraudulent purposes;
- (f) Collect data beyond what is necessary for legitimate interview purposes;
- (g) Share Session Data with unauthorized third parties;
- (h) Use monitoring data for purposes unrelated to interview integrity.

10.2 Technical Prohibitions

You may not:

- (a) Attempt to bypass security measures;
- (b) Probe, scan, or test system vulnerabilities;
- (c) Use bots, scrapers, or automated tools without authorization;
- (d) Overload or interfere with infrastructure;
- (e) Access data belonging to other users;
- (f) Introduce malware or malicious code;
- (g) Circumvent usage limits or access restrictions.

10.3 Interviewee-Specific Prohibitions

Interviewees may not:

- (a) Use AI tools to generate interview responses;
- (b) Use notes, external resources, or assistance during monitored sessions;
- (c) Have another person participate on their behalf;
- (d) Use technology to circumvent or fool monitoring systems;
- (e) Provide false identity information;
- (f) Share session access credentials or tokens.

11. Third-Party Services

11.1 Integrated Services

Blockd integrates with third-party services, including:

Video Conferencing:

- Google Meet
- Zoom
- Microsoft Teams

Authentication:

- Google OAuth
- Microsoft OAuth

AI Analysis (Data is sent to these providers):

- OpenAI (GPT-4, GPT-3.5-turbo)
- Anthropic (Claude models)
- Google AI (Gemini)
- Meta (Llama models)

Infrastructure:

- Cloud hosting providers
- Content delivery networks

- Email services

11.2 Third-Party Terms

Your use of third-party services is subject to their respective terms and privacy policies. We are not responsible for third-party services.

11.3 Data Sharing with Third Parties

We share data with third parties as follows:

Third Party	Data Shared	Purpose
AI Providers	Question text, answer text	Analysis and comparison
OAuth Providers	Authentication requests	Login verification
Organizations	Complete Session Data	Interview review
Infrastructure	Technical logs	Service operation

11.4 International Transfers

Data may be transferred to and processed in countries other than your country of residence. By using our Services, you consent to such transfers.

12. Data Retention and Deletion

12.1 Retention Periods

We retain data for the following periods:

Data Type	Retention Period	Notes
Account Data	Duration of account + 2 years	Or as required by law
Session Data	2 years from session date	May be extended per contract
Video Recordings	1 year from session date	Or per Organization request
Eye Tracking Data	1 year from session date	Compressed after 90 days
Security Events	2 years from event date	For audit purposes
AI Analysis Cache	Indefinite	Anonymized question data
Audit Logs	7 years	Legal compliance

12.2 Data Deletion

Upon request or account termination:

- (a) Active data will be deleted within 30 days;
- (b) Backup data will be purged within 90 days;
- (c) Anonymized or aggregated data may be retained;
- (d) Data required for legal compliance will be retained as necessary.

12.3 Organization Data Portability

Organizations may request export of their data in standard formats (JSON, CSV) at any time during their subscription.

13. User Rights

13.1 Access Rights

You have the right to:

- (a) Request a copy of your Personal Data;
- (b) Access Session Data where you were a participant;
- (c) Review AI analysis and risk scores associated with your sessions;
- (d) Obtain audit logs related to your account.

13.2 Correction Rights

You may request correction of inaccurate Personal Data by contacting support.

13.3 Deletion Rights

Subject to legal retention requirements, you may request deletion of:

- (a) Your account and associated Personal Data;
- (b) Specific Session Data (with Organization consent for Organization data);
- (c) Eye tracking and behavioral data.

13.4 Restriction and Objection

Where applicable, you may:

- (a) Request restriction of processing;
- (b) Object to certain processing activities;

- (c) Withdraw consent for optional data collection.

13.5 Data Portability

You may request your data in a machine-readable format for transfer to another service.

13.6 Exercising Your Rights

To exercise these rights, contact us at privacy@blockd.site with:

- (a) Your name and account identifier;
- (b) Specific request being made;
- (c) Verification information as requested.

We will respond within 30 days, or as required by applicable law.

14. Disclaimers

14.1 Service Disclaimers

THE SERVICES ARE PROVIDED “AS IS” AND “AS AVAILABLE” WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO:

- (a) WARRANTIES OF MERCHANTABILITY;
- (b) FITNESS FOR A PARTICULAR PURPOSE;
- (c) NON-INFRINGEMENT;
- (d) ACCURACY OR RELIABILITY OF RESULTS;
- (e) UNINTERRUPTED OR ERROR-FREE OPERATION.

14.2 Analysis Disclaimers

BLOCKD’S AI ANALYSIS AND MONITORING TOOLS ARE PROVIDED AS DECISION-SUPPORT TOOLS ONLY. WE DO NOT GUARANTEE:

- (a) DETECTION OF ALL CHEATING OR FRAUD;
- (b) ACCURACY OF RISK SCORES OR CLASSIFICATIONS;
- (c) ABSENCE OF FALSE POSITIVES OR FALSE NEGATIVES;
- (d) SUITABILITY OF RESULTS FOR MAKING HIRING DECISIONS.

ORGANIZATIONS REMAIN SOLELY RESPONSIBLE FOR HIRING DECISIONS.

14.3 Third-Party Disclaimers

WE ARE NOT RESPONSIBLE FOR:

- (a) AVAILABILITY OR PERFORMANCE OF THIRD-PARTY SERVICES;
- (b) ACTIONS TAKEN BY THIRD-PARTY AI PROVIDERS;
- (c) THIRD-PARTY SERVICE OUTAGES OR FAILURES.

15. Limitation of Liability

15.1 Exclusion of Damages

TO THE MAXIMUM EXTENT PERMITTED BY LAW, BLOCKD SHALL NOT BE LIABLE FOR:

- (a) INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES;
- (b) LOSS OF PROFITS, REVENUE, DATA, OR BUSINESS OPPORTUNITIES;
- (c) DAMAGES ARISING FROM SERVICE INTERRUPTIONS;
- (d) DAMAGES ARISING FROM UNAUTHORIZED ACCESS TO YOUR DATA;
- (e) DAMAGES ARISING FROM HIRING DECISIONS BASED ON OUR SERVICES.

15.2 Liability Cap

OUR TOTAL LIABILITY FOR ALL CLAIMS ARISING UNDER THESE TERMS SHALL NOT EXCEED:

- (a) FOR ORGANIZATIONS: THE FEES PAID BY YOU IN THE 12 MONTHS PRECEDING THE CLAIM;
- (b) FOR INDIVIDUAL USERS: ONE HUNDRED DOLLARS (\$100).

15.3 Exceptions

THESE LIMITATIONS DO NOT APPLY TO:

- (a) LIABILITY THAT CANNOT BE EXCLUDED BY LAW;
- (b) CLAIMS ARISING FROM OUR GROSS NEGLIGENCE OR WILLFUL MISCONDUCT;
- (c) INDEMNIFICATION OBLIGATIONS.

16. Indemnification

16.1 Your Indemnification Obligations

You agree to indemnify, defend, and hold harmless Blockd and its officers, directors, employees, and agents from any claims, damages, losses, liabilities, and expenses (including attorneys' fees) arising from:

- (a) Your use of the Services;
- (b) Your violation of these Terms;
- (c) Your violation of applicable laws;
- (d) Your infringement of third-party rights;
- (e) Content you submit through the Services;
- (f) Hiring decisions you make using our Services.

16.2 Organization-Specific Indemnification

Organizations additionally agree to indemnify us for claims arising from:

- (a) Failure to obtain proper consent from Interviewees;
- (b) Violation of employment or privacy laws;
- (c) Discriminatory use of our Services;
- (d) Misuse of Session Data or reports.

17. Termination

17.1 Termination by You

You may terminate your account at any time by:

- (a) Contacting support to request account closure;
- (b) Organizations: Cancelling your subscription through account settings.

17.2 Termination by Blockd

We may terminate or suspend your account:

- (a) **For Cause:** Immediately upon violation of these Terms;

- (b) **For Convenience:** With 30 days' notice;
- (c) **For Non-Payment:** After 15 days of payment failure.

17.3 Effect of Termination

Upon termination:

- (a) Your right to use the Services ceases immediately;
- (b) We may delete your data in accordance with Section 12;
- (c) Outstanding payment obligations survive;
- (d) Provisions intended to survive termination remain in effect.

17.4 Survival

The following sections survive termination: Definitions, Intellectual Property, Disclaimers, Limitation of Liability, Indemnification, Dispute Resolution, and General Provisions.

18. Dispute Resolution and Arbitration

18.1 Informal Resolution

Before initiating formal dispute resolution, you agree to contact us at disputes@blockd.site and attempt to resolve the dispute informally for at least 30 days.

18.2 Binding Arbitration

IF INFORMAL RESOLUTION FAILS, ANY DISPUTE ARISING FROM THESE TERMS SHALL BE RESOLVED BY BINDING ARBITRATION, NOT IN COURT, EXCEPT AS PROVIDED BELOW.

Arbitration Terms:

- (a) Arbitration shall be administered by the American Arbitration Association (AAA) under its Commercial Arbitration Rules;
- (b) Arbitration shall take place in Wilmington, Delaware, or by video conference if agreed;
- (c) The arbitrator's decision shall be final and binding;
- (d) Judgment on the award may be entered in any court of competent jurisdiction.

18.3 Exceptions

The following claims are not subject to arbitration:

- (a) Claims that may be brought in small claims court;
- (b) Claims for injunctive or equitable relief related to intellectual property;
- (c) Claims where arbitration is prohibited by law.

18.4 Class Action Waiver

YOU WAIVE ANY RIGHT TO PARTICIPATE IN A CLASS ACTION, CLASS ARBITRATION, OR REPRESENTATIVE ACTION. DISPUTES MUST BE RESOLVED ON AN INDIVIDUAL BASIS.

18.5 Opt-Out

You may opt out of arbitration by sending written notice to legal@blockd.site within 30 days of first using our Services.

19. Governing Law

19.1 Choice of Law

These Terms shall be governed by the laws of the State of Delaware, without regard to conflict of law principles.

19.2 Jurisdiction

For disputes not subject to arbitration, you consent to the exclusive jurisdiction of the state and federal courts located in Wilmington, Delaware.

19.3 North Carolina Users

For users located in North Carolina, this choice of law does not deprive you of mandatory protections afforded by North Carolina consumer protection laws.

20. General Provisions

20.1 Entire Agreement

These Terms, together with our Privacy Policy and any Order Forms, constitute the entire agreement between you and Blockd regarding the Services.

20.2 Severability

If any provision is held unenforceable, the remaining provisions shall continue in effect.

20.3 Waiver

Failure to enforce any provision shall not constitute a waiver of that provision.

20.4 Assignment

You may not assign these Terms without our consent. We may assign these Terms in connection with a merger, acquisition, or sale of assets.

20.5 Notices

We will send notices to the email address associated with your account. You may send notices to legal@blockd.site.

20.6 Force Majeure

We shall not be liable for delays caused by circumstances beyond our reasonable control.

20.7 Modifications

We may modify these Terms at any time. Material changes will be communicated via email or prominent notice. Continued use after changes constitutes acceptance.

20.8 Electronic Communications

By using our Services, you consent to receive communications electronically.

20.9 Export Control

You agree to comply with all applicable export control laws and regulations.

20.10 Government Users

If you are a U.S. government entity, the Services are provided as “commercial items” as defined in 48 C.F.R. 2.101.

21. Contact Information

Blockd, Inc.

General Inquiries: contact@blockd.site
Legal Department: legal@blockd.site
Privacy Requests: privacy@blockd.site
Dispute Resolution: disputes@blockd.site
Support: support@blockd.site
Mailing Address: Blockd, Inc.
Delaware, United States

ACKNOWLEDGMENT

BY USING BLOCKD SERVICES, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY THESE TERMS OF SERVICE.

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